

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

Dated Filed:

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CHRISTIAN FELICIANO,

Plaintiff,

Plaintiff designates NEW YORK
County as the place of trial.

- against -

The basis of venue is
CPLR 504(3)

CITY OF NEW YORK and NEW YORK
CITY POLICE DEPARTMENT; OFFICER
JAIME GARCIA, OFFICER BRIAN HOBAN,
AND "JOHN AND JANE DOE 1-10"
(Representing City of New York or New York City
Police Dept. agents whose names are not known
at this time)

SUMMONS

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and, in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 24, 2013

Yours, etc.,



Christopher C. Thaens, Esq.
Law Offices of Christopher C. Thaens, PC
Attorney for Plaintiff
100 William Street – Suite 1210
New York, NY 10038
(212) 742-8400
File No.: 13.056

DEFENDANTS' ADDRESSES:

CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza, New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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CHRISTIAN FELICIANO,

Plaintiff,

-against-

Index No.:

VERIFIED COMPLAINT

CITY OF NEW YORK and NEW YORK
CITY POLICE DEPARTMENT; OFFICER
JAIME GARCIA, OFFICER BRIAN HOBAN,
AND "JOHN AND JANE DOE 1-10"
(Representing City of New York or New York City
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at this time)
-----X

Plaintiff, by his attorney, LAW OFFICES OF CHRISTOPHER C. THAENS, PC,
complaining of the defendants, alleges the following, upon information and belief:

1. That at all times hereinafter mentioned, defendant, **CITY OF NEW YORK**
(hereinafter referred to as "**CITY**") was a municipal corporation duly organized and existing
pursuant to the laws of the State of New York.

2. That at all times hereinafter mentioned, defendant **NEW YORK CITY POLICE
DEPARTMENT**, (hereinafter referred to as "**NYPD**") was and still is a political subdivision of
defendant, **CITY**.

3. That at all times hereinafter mentioned, defendants owned, controlled, operated,
managed, and maintained a police department and/or the 34th Precinct in New York, New York.

4. A notice of claim was served upon defendants on March 13, 2013.

5. More than thirty (30) days have elapsed since presentation of said claim, and
defendants have failed to adjust and/or dispose of the claim presented therein.

6. Plaintiff gave testimony at a "50-h" Hearing on June 18, 2013.

7. This action is commenced within one year and ninety days of the date of the incident and/or accrual of the cause of action.

8. On April 27, 2012, at approximately 2:00 p.m. at about 21 Sherman Avenue, New York, New York, The plaintiff **CHRISTIAN FELICIANO** was without just or probable cause or provocation falsely arrested and imprisoned at both the scene of the occurrence and continuing thereafter.

9. Per Certificate of Disposition Number 301304, on December 13, 2012, pursuant to Docket Number 2012NY033413, the charges against plaintiff for of (1) Gang Assault in the 1st Degree, New York Penal Law Article §120.07; (2) Strangulation in the 2nd Degree, New York Penal Law Article § 121.12; (3) Assault in the second degree, New York Penal Law Article §120.05; and possibly other charges, were dismissed and upon information and belief, the arrest and prosecution were sealed.

10. As a result of the aforementioned occurrence, plaintiff **CHRISTIAN FELICIANO** was deprived of his civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances, statutes, codes and rules, including 42 SC §1981, §1983, §1985 and 28 USC §1343.

11. Defendants and/or their employees and/or agents knew or should have known that **CHRISTIAN FELICIANO** was not properly arrested.

12. The aforementioned occurrence took place by reason of the negligence of defendants, **CITY** and **NYPD**, by their agents, servants and/or employees, including various members and/or police officers of the **NYPD** and/or the 34th Precinct, including but not limited to officers, upon information and belief, “**JAIME GARCIA**” and “**BRIAN HOBAN**”.

13. The aforementioned occurrence took place by reason of the intentional conduct of defendants, **CITY** and **NYPD**, by their agents, servants and/or employees, including various police officers of the **NYPD**, including but not limited to officers, upon information and belief, "JAIME GARCIA" and "BRIAN HOBAN".

14. As a result of the foregoing, plaintiff, **CHRISTIAN FELICIANO**, sustained personal injuries, loss of liberty, loss of health which is continuing and permanent, humiliation, mental anguish, embarrassment, injury to reputation, emotional and psychological harm, and other consequential damages, including multiple court appearances until the charges were dropped against plaintiff.

15. As a result of the foregoing, plaintiff **CHRISTIAN FELICIANO** has been damaged in excess of the jurisdictional limits of all lower courts in which this action could otherwise have been brought.

WHEREFORE, plaintiff demands judgment against the defendants on the aforementioned causes of action in amounts which exceed the jurisdictional limits of all lower courts in which this matter may have been brought, with interest from the date of the occurrence, together with the costs and disbursements of this action.

Dated: New York, New York
June 24, 2013



Christopher C. Thaens, Esq.
Law Offices of Christopher C. Thaens, PC
Attorney for Plaintiff
100 William Street – Suite 1210
New York, NY 10038
(212) 742-8400
File No.: 13.056

VERIFICATION

State of New York)
) ss:
County of New York)

CHRISTIAN FELICIANO, being sworn says:

I am the plaintiff in the within action and I have read the foregoing **COMPLAINT** and know the contents thereof, and upon information and belief, affirmant believes the matters alleged therein to be true.

Dated: New York, New York
June 25, 2013

Christian Feliciano
CHRISTIAN FELICIANO

Sworn to before me this
25th day of June, 2013



Notary Public

CHRISTOPHER C. THAENS
Notary Public, State of New York
No. 01TH5031127
Qualified in New York County
Commission Expires

10/31/14

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-against-

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(Representing City of New York or New York City
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at this time)

Defendants.

SUMMONS AND VERIFIED COMPLAINT

Law Offices Of
CHRISTOPHER C. THAENS, PC
ATTORNEY FOR PLAINTIFF
Office and Post Office Address, Telephone
100 William Street - Suite 1210
New York, New York 10038
212-742-8400

To:

Attorney(s) for

Service of a copy of the within

is hereby admitted.

dated,

Attorney(s) for